

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. Scope of the Consultation

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of

Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which call for the transformation of education systems to 'include everyone, regardless of circumstance, context or background'. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that "*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*". Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

¹ <https://www.unesco.org/en/right-education/evolving>

² <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³ https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf

⁴ https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵ [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.unesco.org/en/marrakech-framework-for-action)

⁶ [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.unesco.org/en/tashkent-declaration-ecce-2022)

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**⁷ in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁸, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁹. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

⁷ <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

⁸ <https://en.unesco.org/education/girls-women-rights>

⁹ [UIS Statistics \(unesco.org\)](https://uis.unesco.org)

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

GENERAL INFORMATION:

Country name: **The Gambia**

Organization or entity responsible for the preparation of the report: **Ministry of Basic and Secondary Education**

Name of contact person: **Tida Jatta Jarjou**

Email and telephone number of contact person: tida.jatta@edugambia.gm Tel: 220 9998002

I. Ratification and applicability of the Convention against Discrimination in Education¹⁰

- Is your country a State Party to the Convention?

☐ Yes

☐ **No**: Does your country plan to ratify this instrument?

☐ **Yes**: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☐ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

- Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

☐ No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

☒ Yes ☐ No

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹¹

☐ No

¹⁰ <https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

¹¹ Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

☐ Yes: Have the provisions of the Convention been invoked?

☐ Yes ☐ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

*It further corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹²*

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☒ Yes ☐ No

- If yes, please provide reference:

Our Education Policy 2016 – 2030 and the Education Act emphasised on quality, non-discrimination and inclusivity when it comes to education. Education is considered a **Right**.

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation¹³, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁴

¹² Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

¹³ See: Article/Paragraph 1(1).

¹⁴ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

☐ Legal texts¹⁵ prohibit discrimination and guarantee equal access to education:

- ☐ In pre-primary education (including early learning and care)
- ☐ In primary education
- ☐ In secondary education
- ☐ In technical and vocational education and training
- ☐ In higher education
- ☐ In adult education and alternative learning

- Please indicate the relevant legal provisions:

1. The 1997 Constitution of The Gambia
2. The Education Policy 2016-2030
3. The Education Act

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

1. Race
2. Gender
3. Ethnicity
4. Place of origin
5. Language
6. Economic background
7. Religious background

☐ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

- ☐ In pre-primary education (including early learning and care)
- ☐ In primary education
- ☐ In secondary education
- ☐ In technical and vocational education and training
- ☐ In higher education
- ☐ In adult education and alternative learning

¹⁵ Constitution, laws, decrees, regulations, circulars, etc.

- Please provide details:

1. The Constitution of the Gambia
2. The Children's Act
3. The Education Policy 2016-2030
4. The Education Act
5. The Women's Act
6. The Gender Policy
7. The Disability Act
8. The Sexual Offences Act
9. The Domestic Violence Act
10. The Anti Child Marriage Act
11. The Anti FGM Act

☐ Combatting discrimination in terms of curriculum:

- ☐ In pre-primary education (including early learning and care)
- ☐ In primary education
- ☐ In secondary education
- ☐ In technical and vocational education and training
- ☐ In higher education
- ☐ In adult education and alternative learning

- Please provide details:

1. Curriculum Audit
2. Gender sensitive curriculum
3. Gender responsive curriculum
4. Special Educational Needs Policy
5. New curriculum framework
6. Curriculum expansion
7. Piloting of the Language Policy

☐ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

1. Gender Responsive Pedagogy Training of teachers
2. Teacher Trainings
3. Community Sensitisations
4. Peer Tutoring
5. Peer Health Education
6. Peer Counselling
7. The creation of itinerant Teachers to assist children with Special Needs
8. Mainstreaming of child with mild disability
9. Mainstreaming Gender at all levels of the basic and secondary education process
10. The creation of a flexible calendar system in the country's education system.

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

- | | |
|---|---|
| ☐ Legislation provides for inclusive education for all | ☐ Multiple and flexible learning pathways ¹⁷ are provided for |
| ☐ Policy measures aim to enhance inclusion in education for all | ☐ Curricula and teaching methods are inclusive in design ¹⁸ |
| ☐ Teachers are trained on inclusive education ¹⁶ and to value diversity | ☐ Multilingual and intercultural education is supported |
| ☐ Initiatives to address discrimination and promote cultural diversity and mutual acceptance | |
| ☐ Other: | |

¹⁶ Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

¹⁷ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

¹⁸ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

1. The development of the Language Policy
2. The Special Educational Needs Policy
3. The Sexual Harassment Policy Guidelines
4. The Education Act
5. The Flexible Calendar for Basic and Secondary Education
6. Gender Mainstreaming in the Education Policy
7. The Education Sector Strategic Plan 2017-2030

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

1. Resistance from some pockets of the country
2. Misinterpretation of the Islamic region
3. Funding
4. Unwillingness to report cases of sex and gender based violence

Other relevant general measures, including gender equality

- | | |
|---|--|
| ☐ Legislation provides for gender equality in education | ☐ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education |
| ☐ Policy measures aim to enhance gender equality | ☐ Re-entry programmes for young mothers are provided for |
| ☐ Gender-responsive education sector planning is undertaken | ☐ Ensuring safe and adequate gender-sensitive sanitation facilities ²⁰ |
| ☐ Providing positive or affirmative action measures | ☐ Curricula are rid of all stereotypes ²¹ and bias |
| ☐ Providing financial incentives and fellowships | ☐ Ensuring gender parity in science, technology, engineering and mathematics (STEM) |
| ☐ Teachers are trained (initial and in-service) on gender equality | |

²⁰ 'Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

²¹ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

☐ Teachers are trained to combat stigmatisation¹⁹

☐ Other:

☐ Ensuring gender parity in technical and vocational training education and training (TVET)

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

1. The creation of the TVET unit and the TVET subjects offered in Grade 4. This is a Policy Shift of starting TVET subjects at upper basic level
2. In-service teacher training on gender and gender responsive pedagogy
3. Mathematics and science clinics for girls
4. Gender is mainstreamed in the Education Policy
5. Gender parity in education achieved
6. Scholarships provided for girls from disadvantaged backgrounds – Scholarship Trust Fund for Girls
7. Provision of sanitary pads for girls and menstrual hygiene trainings for girls
8. The Re-entry Programme for girls (girls who dropped out as a result of pregnancy, early marriage or poverty
9. Provision of Guidance and Counselling in schools
10. Second chance education programme

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

1. Cultural factors such as traditional initiation rites and male child preference and dominance
2. Domestic chores for girls
3. Misinterpretation of the Islamic religion
4. Early marriage
5. Sex and gender based violence

- Does the legal minimum age for marriage conform to international standards (18 years) ²²:

¹⁹ ‘ Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them’ (Cambridge Dictionary).

²² Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☒ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

The Anit Child Marriage Act of 2015

National minorities:

For reference: Article/Paragraph 5(1)© of the Convention/Recommendation provides for the rights of national minorities.

- | | |
|--|--|
| ☐ Legislation provides for the right to education of national minorities | ☐ Teachers are trained on intercultural education |
| ☐ Policy measures aim to enhance the right to education of national minorities | ☐ Teachers are trained to combat stigmatisation ²⁴ |
| ☐ Policy elaboration includes consultations with local communities | ☐ Multilingual and intercultural education are supported |
| ☐ The right to carry out their own educational activities is legally guaranteed for national minorities | ☐ Native language instruction is ensured for national minorities |
| ☐ Educational standards are established for educational institutions run by national minorities | ☐ Adapting curricula and teaching and learning methods to their needs for national minorities |
| ☐ Positive or affirmative action measures are provided for national minorities | ☐ Curricula are rid of all stereotypes ²⁵ and bias |
| ☐ Financial incentives and fellowships are provided for national minorities | |
| ☐ Other ²³ : | |

1. The Education Policy development process involves regional consultations, media consultations, national conference and technical consultations
2. Minimum standards are developed for basic and secondary education
3. There are school management manuals for basic and secondary education

practice, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition."

²³ Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

²⁴ Supra note 15.

²⁵ Supra note 16.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

1. Funding
2. Resistance from some quarters of the country especially in areas where there are huge Quranic memorisation centres
3. Early marriage
4. Sex and gender based violence

Indigenous people:

- | | |
|--|--|
| ☐ Legislation provides for the right to education of indigenous people | ☐ Financial incentives and fellowships are provided for indigenous people |
| ☐ Policy measures aim to enhance the right to education of indigenous people | ☐ Teachers are trained on intercultural education |
| ☐ Policy elaboration includes consultations with local communities | ☐ Teachers are trained to combat stigmatisation ²⁶ |
| ☐ The right to carry out their own educational activities is legally guaranteed for indigenous people | ☐ Multilingual and intercultural education are supported |
| ☐ Educational standards are established for educational institutions run by indigenous people | ☐ Native language instruction is ensured |
| ☐ Positive or affirmative action measures are provided for indigenous people | ☐ Adapting curricula and teaching and learning methods to their needs for indigenous people |
| ☐ Other: | ☐ Curricula are rid of all stereotypes ²⁷ and bias |

We do not have indigenous people in the Gambia

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

²⁶ Supra note 15.
²⁷ Supra note 16.

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations²⁸:

- | | |
|--|---|
| ☐ Legislation provides for their right to education | ☐ Financial incentives and fellowships are provided for |
| ☐ Policy measures aim to enhance their right to education | ☐ Auxiliary assistance is provided |
| ☐ Inclusion in mainstream schools is ensured | ☐ Multiple and flexible learning pathways ³¹ are provided |
| ☐ Positive or affirmative action measures are provided for | ☐ Curricula are rid of all stereotypes ³² and bias |
| ☐ All administrative barriers to access education are removed | ☐ Accelerated learning programmes are provided |
| ☐ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers ²⁹ are provided for | ☐ Non-formal and/or alternative education programmes are provided |
| ☐ Teachers are specifically trained to ensure their inclusion | ☐ Language classes to newcomers are provided for |
| ☐ Teachers are trained to combat stigmatisation ³⁰ | ☐ Multilingualism and intercultural education are encouraged |
| ☐ Other: | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☐ No

- Please elaborate:

²⁸ 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

²⁹ While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

³⁰ Supra note 15.

³¹ Supra note 13

³² Supra note 16.

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

People with disabilities:

- | | |
|--|---|
| ☐ Legislation provides for their right to education | ☐ Mainstream teachers are specifically trained on disabilities |
| ☐ Policy measures aim to enhance their right to education | ☐ Teachers are trained to combat stigmatisation ³³ |
| ☐ Inclusion in mainstream schools is ensured | ☐ Auxiliary assistance is provided |
| ☐ Special schools are used as resource centers to inclusive schools | ☐ Curricula and teaching and learning methods are adapted |
| ☐ Positive or affirmative action measures are provided | ☐ Curricula are rid of all stereotypes ³⁴ and bias |
| ☐ Financial incentives and fellowships are provided | ☐ Education infrastructure and learning materials are adapted |
| ☐ Other | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

1. Disability Act
 2. The Special Educational Needs Policy
 3. The creation of the itinerant teachers programme
 4. Training of itinerant teachers
 5. There are four special schools in the The Gambia
 - a. The St. John's School for the deaf
 - b. The School for the visually impaired. They are two in number
 - c. The Methodist School for children with severe learning difficulties
 6. Mainstreaming of children with mild and moderate disabilities

³³ Supra note 15.

³⁴ Supra note 16.

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

1. Adequate and appropriate teaching and learning materials for children with special needs
2. Inadequate teachers trained in the different areas of special needs
3. Inadequate expertise at central and regional levels

Students from poor households:

- | | |
|--|--|
| ☐ Financial incentives and fellowships for school enrolment are provided | ☐ Teachers are trained to combat stigmatisation ³⁵ |
| ☐ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education | ☐ Curricula are rid of all stereotypes ³⁶ and bias |
| ☐ Positive or affirmative action measures are provided | |
| ☐ Other: | |

1. The provision of the School Improvement grant to schools. The automatically eliminated school fees in our public schools
2. The provision of school feeding for children from vulnerable homes
3. The donkey cart project to ease transportation of children from hard to reach areas to be able to attend school on time
4. Positive discrimination for female students in terms of enrolment

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

1. The Home grown school Feeding Policy
2. The School Improvement grant
3. The Donkey Cart Initiative

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

1. Short life span of the donkeys

³⁵ Supra note 15.

³⁶ Supra note 16.

2. Delay in the payment of the School Improvement grant
3. Pipeline breaks especially in areas operated by our partners

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation³⁷ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education³⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Please indicate the measures taken to ensure access to quality ECCE (several items may be ticked):

- | | |
|---|---|
| ☐ Prior to pre-primary education, ECCE services are free | ☐ ECCE services respect a child’s need for early cognitive and social development, |
| ☐ Prior to pre-primary education, ECCE services are affordable | foundational learning, responsive care, |
| ☐ ECCE services are accessible on a non-discriminatory basis | nutrition, health, safety, protection, and play. |

- Please elaborate further on the measures taken:

1. ECD centres are annexed to most if our lower basic schools in the provinces
2. Community ECDs are also established
3. ECD teachers (most) are professionally trained

- Is compulsory and free of charge pre-primary education available?

- ☐ Pre-primary education is compulsory. Please provide the age of enrolment and duration:

The age of enrolment is five years and the duration is two years. However some start as early as three years

- ☐ Pre-primary education is **not** compulsory.

³⁷ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.
³⁸ Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

- ☐ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

Pre primary education is free in our annexed public schools. However, there are private oerators and they are not free

- ☐ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

The Education Policy 2016-2030

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

☒ Limited access

☐ Poor learning outcomes

☐ Issues of equity and inclusion

☒ Low number of professionally trained educators

☐ Poor quality programmes

☐ Lack of support to families

☐ Other:

1. Mostly in urban areas, ECD are operated by private individual and this is not free

2. As such, poor families have limited access to ECD

- Please elaborate. Brief quantitative information may be added.

ECD gross enrolment rate is less than 50%. It is currently 43.74%

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide "12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory."

Primary education

- Please provide the age of enrolment and duration of primary education:

The official age of enrolment is seven years and the duration of primary education is six years

- Is primary education compulsory and free of charge?

☒ Primary education is compulsory

☐ Primary education is **not** compulsory.

☐ Primary education is free of charge.

☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

1. The Constitution of the Gambia in 1997

2. The Education Policy 2016-2030

- What challenges were encountered in realizing primary education?

☐ Limited access

☐ Issues of equity and inclusion

☐ High dropout rates

☐ Poor quality programmes

☐ Other:

☐ Poor learning outcomes in:

Foundation literacy

Numeracy

Social and emotional learning

Others

☐ Disparity in learning outcomes

☐ Low number of professionally trained teachers

- Please elaborate. Brief quantitative information may be added.

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

The age of enrolment in lower secondary education is 13years and duration is 3years

- Please provide the age of enrolment and duration of upper secondary education:

The age of enrolment in upper secondary education is 15years and duration is 3years

- Is lower and upper secondary education compulsory and free of charge?

☐ Lower secondary education is compulsory.

☐ Lower secondary education is **not** compulsory.

☐ Lower secondary education is free of charge.

☐ Lower secondary education is **not** free of charge.

☐ Upper secondary education is compulsory.

☐ Upper secondary education is **not** compulsory.

☐ Upper secondary education is free of charge

☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

1. *The Constitution of the Gambia 1997*

2. *The Education Policy 2016-2030*

3. *The Education Act*

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes o No o

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

- What challenges were encountered in realizing secondary education?

☐ Limited access

☐ Issues of equity and inclusion

☐ High dropout rates

☐ Poor quality programmes

☐ Poor learning outcomes

☐ Low readiness of primary graduates

☐ Low number of professionally trained teachers

☐ Other:

Particularly in the science and TVET fields

- Please elaborate. Brief quantitative information may be added.

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3³⁹, and target 4.4⁴⁰. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

- ☐ Higher education is free of charge
- ☐ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)
- ☐ Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☐ Higher education is accessible through credit transfer system between states
- ☐ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).
- ☐ Other:

Not application

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

³⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁴⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

- What challenges were encountered in realizing higher education?

- ☐ Limited access
- ☐ Issues of equity and inclusion
- ☐ Poor quality programmes
- ☐ Poor learning outcomes
- ☐ Other:
- ☐ Low number of professionally trained professors
- ☐ Insufficient mechanisms to ensure smooth transition from secondary to tertiary

- Please elaborate. Brief quantitative information may be added.

Not applicable

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked):

- ☐ Provision of education for persons who have not received or completed the whole period of their primary education
- ☐ Provision of literacy programmes
- ☐ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)
- ☐ Provision of free of charge learning opportunities
- ☐ Provision of professional training including reskilling and upskilling programmes
- ☐ Recognition, validation and certification of non-formal and informal learning
- ☐ Provision of free of charge career guidance and counselling
- ☐ Lifelong learning entitlements including learning accounts, vouchers, etc.
- ☐ Other:

- Please elaborate further on the measures taken:

- What challenges were encountered in realizing adult learning and education?

☐ Limited access

☐ Issues of equity and inclusion

☐ Poor quality programmes

☐ Other:

☐ Limited funding

☐ Poor learning outcomes

☐ Low number of professionally trained educators

- Please elaborate. Brief quantitative information may be added.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- ☐ State monitoring and inspections
- ☐ Health and sanitation
- ☐ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☐ Infrastructure
- ☐ Curriculum
- ☐ Student-teacher ratio
- ☐ School fees (if relevant)
- ☐ Other

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

1. *The constitution of the Gambia 1997*
2. *The Education Policy 2016 – 2030*
3. *The Education Sector Strategic Plan 2016 – 2030*
4. *The Sexual Harassment Policy Guidelines*
5. *The Language Policy*
6. *The Special Educational Needs Policy*
7. *The TVET Policy*
8. *The Quality Assurance Framework*
9. *The Minimum Standards of Basic and Secondary Education*
10. *The School Management Manual*
11. *The Classroom Observation Tool*

- What challenges were encountered in realizing quality education?

☐ Non-supportive or inadequate learning environments

☐ Low quality educational infrastructure and materials

☐ Violence in schools

☐ Inadequate parental support to education

☐ Cost of education

☐ Long distances to schools

☐ Conflicts or crises

☐ Other:

- Please elaborate. Brief quantitative information may be added.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

- ☐ Teacher training is provided without discrimination.
- ☐ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).
- ☐ Initial training and continuous professional development are provided.
- ☐ Minimum standards and qualifications required for the teaching profession.
- ☐ Measures taken to strengthen the social status and attractiveness of the teaching profession.
- ☐ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.
- ☐ Establishment of performance monitoring systems.
- ☐ Measures taken to increase women in leadership positions in education.

☐ Other:

- Please elaborate on each of the measures taken:

1. Teacher until recently was free.
2. One must have at least four credits before one is admitted to the college of education
3. The Gambia College has been transformed to a university of education
4. Hardship and provincial allowance are paid to teachers who take up postings in the rural areas
5. Staff quarters are built in many schools
6. Women are encouraged to take up the teaching profession. This is called the Female Teacher Recruitment Drive
7. We do have a performance monitoring system. It is a directorate.

- What challenges were encountered in the education personnel?

☐ Shortages of teaching staff

☐ Lack of qualified, trained and motivated teaching staff

☐ Low quality educational infrastructure and materials

☐ High student – teacher ratio

☐ Lack of training centres

☐ Other:

1. Many teachers posted in the rural areas do not stay there for long

2. Some schools have poor infrastructure

- Please elaborate. Brief quantitative information may be added.

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁴¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

☐ Curriculum includes human rights education.

☐ Educational and/or extracurricular activities are organized on human rights education.

☐ Other:

1. The curriculum contain human rights education

2. Many of our schools are Human Rights Friendly School

3. Human Rights Education is a huge extracurricular activity

- Please elaborate on each of the measures taken:

3.4 Non-state actors in education

⁴¹

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁴².

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

☐ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁴³ explicitly apply to non-state educational institutions. [Please specify:](#)

The Education Act

The Education Policy

☐ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). [Please specify:](#)

The Education Policy

☐ Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. [Please specify:](#)

The Education Act

The Education Policy

The Constitution of the Gambia

☐ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. [Please specify what is covered:](#)

- ☐ **Registration**
- ☐ **State monitoring and inspections**
- ☐ **Qualifications of teachers**
- ☐ **Health and sanitation**
- ☐ **Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))**
- ☐ **Infrastructure**
- ☐ **Curriculum**
- ☐ **Student-teacher ratio**
- ☐ **School fees**

⁴² Private, faith-based, NGOs, community actors.

⁴³ See: Article/Paragraph 1(1).

☐ School closures

☐ Other

The Education Act

- Please elaborate:

- What challenges were encountered in non-state education provision?

☐ Low quality educational infrastructure and materials

☐ Low number of professionally trained teachers

☐ High student – teacher ratio

☐ Other:

☐ Issues in terms of equity and inclusion

☐ Weak government regulatory and monitoring capacity

The above are true for some private schools. Most of them are doing extremely well.

- Please elaborate. Brief quantitative information may be added.

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁴⁴.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

☐ Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

The Education Policy 2016-2030

The Education Sector Strategic Plan 2016 – 2030

☐ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)

- ☐ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.
- ☐ Measures to remove barriers to accessing digital content⁴⁵, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.
- ☐ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.
- ☐ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education
- ☐ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.
- ☐ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

- What challenges were encountered in digital education provision (check all that apply)?

- | | |
|--|---|
| ☐ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways | ☐ Limited access to internet and/or electricity |
| ☐ Lack of equity and inclusion in digital learning solutions | ☐ Limited access to hardware (devices, chargers, etc.) |
| ☐ inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks | ☐ Difficulty in regulating the use of digital education solutions |
| ☐ Other: | ☐ Difficulty in sustainably financing digital education solutions at national scale |
| | ☐ Lack of digital skills development for meaningful use of digital technology in teaching practice |
| | ☐ Disjointed or fragmented solutions that are not centrally systematized or regulated |

Our curriculum is in the process of being digitalised. Digitalisation is in progress

⁴⁵ Lack of internet connection, basic infrastructure or devices.

- Please elaborate. Brief quantitative information may be added.

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4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

☐ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.

☐ Monitoring results are made public. Please provide the link:

Monitoring results are shared at the level of the Education Sector
--

☐ Monitoring processes are participatory, inclusive and regular.

☐ Sector-wide and multisector approach is adopted to education governance.

☐ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.

☐ The decision-making process for the allocation of resources to education is transparent.

☐ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.

☐ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

Monitoring is done from the following levels
--

- | |
|--|
| <ol style="list-style-type: none">1. The centre at the level of Headquarters, technical Directorates as well as the M&E Unit under the Directorate of Performance Management Assessment, Monitoring and Evaluation.2. At the level of Senior Management |
|--|

3. At the level of the Coordinating Committee Meetings (CCM)
4. At the level of the region
5. AT the level of the cluster
6. At the level of the school

- What challenges were encountered in terms of governance?

- | | |
|--|---|
| ☐ Budgetary constraints | ☐ Absence of supportive/ inconsistent/obsolete legal and policy environment |
| ☐ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels | ☐ Lack or weakness of monitoring systems – including the lack of reliable data |
| ☐ Poor dialogue with teachers' trade unions | |
| ☐ Other: | |

Budgetary constraints is a major challenge

- Please elaborate. Brief quantitative information may be added.

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

Translation, dissemination and dialogue is important to forster debate especially on the issue of the right to education for all and the convention as a whole.

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THE GAMBIA

REPORT ON THE IMPLEMENTATION OF 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Introduction

The Ministry of Basic and Secondary Education is committed to meeting the implementation of the 1960 Convention and Recommendation against Discrimination in Education although The Gambia as a Country has not yet signed it. However, The Ministry takes issues of discrimination in all its form with utmost seriousness. The Ministry is also aware that discrimination could have a lot of negative impact on the well-being and education of students but also in the community especially to those marginalized in the society. Discrimination based on gender, disability, tribe, religion, caste, culture and in any of its form is against the human rights of the people but also rights to Education. These and many reasons are why the Ministry of Basic and Secondary Education is working tirelessly with the support of partners to embark on rigorous training and sensitization as well as coming up with legislation and sector policies to promote the existence of a safe and conducive learning environment in all schools across the country. The Ministry worked to address the issue of parity in terms of boys and girls in relation to enrollment, retention, completion and performance in schools.

Ministry of Basic and Secondary Education – The Gambia

The curriculum framework that was developed is a competent based curriculum that is gender responsive and nondiscriminatory. The Ministry is aware that for the schools to be safe and conducive for learning, discrimination must be tackled and Inclusive, Quality and Relevance must be the bedrock of our operation and implementation. The fact that we are obliged by the 1960 Convention and Recommendation against Discrimination in Education means that we will not relent in our responsibility to making the schools and education nondiscriminatory. If discrimination is combated in education, the students are more likely to excel in both academic and character which in turn promotes coexistence among students and members of the community. It also means the vulnerable members of the community will have access to relevant and quality education.

The Legal Frameworks

The right to Education has been provided for in the 1997 Constitution of the Gambia in Article 30. It States that (a) basic education shall be free, compulsory and available to all; and this has also been affirmed in the Gambia's Children' Act 2005. With this provision, the Ministry and Government of the Gambia are committed to meeting this provision and have made sure that tuition is free for all public and government subvented schools. Additionally, under the guiding principles on the Education Policy 2016 2030, the principles of Non-

discriminatory and all-inclusive provision of education underlining in particular gender equity and targeting of the poor and disadvantaged groups, It also provide Respect for the rights of individual, cultural diversity, indigenous languages and knowledge were articulated.

The Inclusiveness of The Education Policy 2016 – 2030 Development Process

The development of the Education Policy 2016 – 2030 was premised on The Gambia’s Vision 2020, Programme for Accelerated Growth and Employment (PAGE) and the Sustainable Development Goals (SDG) and the National Development Plan 2017-2021, all of which seeks to improve the human capital of the country by reducing the number of people living below the poverty line. The policy development was also in tandem with the global efforts on sustainable development. Thus the theme of the policy consultations was “Accessible, Equitable and Inclusive Quality Education for sustainable Development”.

The participation of all stakeholders in education was central in the policy dialogue process. The process attempted, in a variety of ways, to include children as well as adults; illiterate as well as literate members of the society; national assembly members, government departments; civil society and private sector representatives. Meetings were organised that

brought together school children, teachers and parents from both the rural and urban parts of the country to discuss the strengths and weaknesses of the Education Policy 2004 – 2015 for the development of a new education policy for the next fifteen years. These meetings included television 'bantabas', children's forum and regional conferences supported by a series of television and radio programmes. From these consultations together with issues emanating from the Coordinating Committee Meetings (CCM) and Joint Donor reviews provided the basis for the debates of the fifth National Conference on Education. Concerns raised included:

- i. Improving access to quality education for all, particularly girls, for greater gender equity**
- ii. The expansion of secondary education to absorb a minimum of 70% of the basic education graduates**
- iii. Development of life Formal Education skills and creation of awareness of killer diseases such as HIV/AIDS, malaria, cancer and tuberculosis**
- iv. Provision of relevant vocational education and technical training based on labour market intelligence**
- v. Further re-organisation of the Ministry of Basic and Secondary Education (MoBSE) and the Ministry of Higher Education Research, Science and**

Technology (MoHERST) within the context of the local government decentralisation reforms

- vi. Better management capacity and professional development at all levels**
- vii. Increased access to higher education, especially of girls and women. The elimination of all fees at the basic and secondary levels and the further reduction of expenditure burden on households for all levels of education.**

The linkage between the policies of both ministries of basic and secondary and higher education, particularly in the areas of national languages, teacher training and post-basic technical vocational education and training within the context of a sector wide policy

The National Conference generated recommendations and resolutions aimed at addressing the above concerns. Having been guided by these recommendations and resolutions, the drafters developed the policy write-up into various drafts, the fourth of which was presented to the stakeholders for validation. Regional validation workshops were held across all regions of the country to ensure, among other things, that:

- i. The document captures the priority needs and challenges of education in the country**

- ii. The policy objectives are pertinent to the country's needs and aspirations**
- iii. The policy statements are realistic and implementable**
- iv. The document takes into account factors that are likely to enhance the sustainability of expected results**
- v. The document addresses the concerns raised during the consultations**
- vi. The stakeholders are ready to take ownership of the policy**
- vii. The policy objectives are harmonised with Vision 2020, Education for All and the SDG education-related goals.**

Implementation of the Convention

Although The Gambia did not yet sign the Convention, The Life Skills Education Unit of the Ministry of Basic and Secondary Education, has been conducting series of awareness-raising campaigns, training programs and host of other interventions. Since 2021, with the support of partners such as UNICEF, conducted series of trainings for Mother's Club, Peer Health Educators, Administrators, School Management Committees, Police, teachers on Safe School. In these trainings, issues of FGM/C, Child Marriage, Bullying,

Human Trafficking, and Gender-based Violence. Additionally, knowing how students are vulnerable, teachers and Peer Health Educators are trained on Guidance and Counselling to curb the social, academic and emotional stress that students go through.

Moreover, The Ministry of Basic and Secondary Education through Gender Education Unit also embarks on rigorous sensitization and training for teachers, Mother's Club, students advocating for girls in STEM Education, Menstrual Health and Management, gender-based violence and distribution of sanitary or Menstrual pads to school to be handed to girls as well as menstrual hygiene training to help girls manage their Menstrual health and avoid losing contact hours and the importance of girls' education and the creation of a conducive and safe learning environment were also discussed. Additionally, with support of partners, World Bank through the SWEDD plus project has procured bicycles to be distributed to vulnerable girls at the provinces to ease travelling of girls to and from school. This is done by emphasizing on the importance of enrollment, retention and completion.

In the areas of discrimination against persons with disability, the Ministry of Basic and Secondary Education through the Early Childhood Development and Inclusive Education

Ministry of Basic and Secondary Education – The Gambia

Directorate is implementing the Special Educational Needs Policy which emphasized on the provision of education for every child with special educational needs.

Progress Made

The Ministry of Basic and Secondary Education has made a significant stride in providing access to school. With support from partners, the Ministry was able to build schools with proper WASH facilities especially in the rural part of the country that were mostly affected with access to school especially with girls whose parents would not have allowed them to travel far to acquire education. This has contributed to the attainment of gender parity in terms of enrollment to school. In addition to building schools, the Ministry was also able to upgrade Lower Basic Schools to Basic Cycle Schools and Upper Basic Schools to Senior Secondary Schools to avoid students travelling long distance to access Upper Basic or Senior Secondary Schools. Thus, progress has been made in the aspect of access to school for boys and girls. Moreover, to strengthen our inclusive education for all, the special needs students are mainstream in the school system and are provided with itinerant teachers who provide them with the necessary support in their learning. The itinerant teachers are provided with motorbikes to help them access the children in

11TH CONSULTATIONS ON THE IMPLEMENTATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

their academic needs. The table below clearly shows the picture in the Gambia in terms of availability of schools.



SOURCE: THE MINISTRY OF BASIC AND SECONDARY STATISTICAL YEAR BOOK 2023

On the issues of child marriage, that also discriminates against girls in schools, is getting recognized. The Ministry through its interventions with teachers, administrators, school management committees, and mother's club have provided them with a reporting mechanisms in which issues of child marriages are reported to stop it before the process takes place.

The Second Chance Education Programme

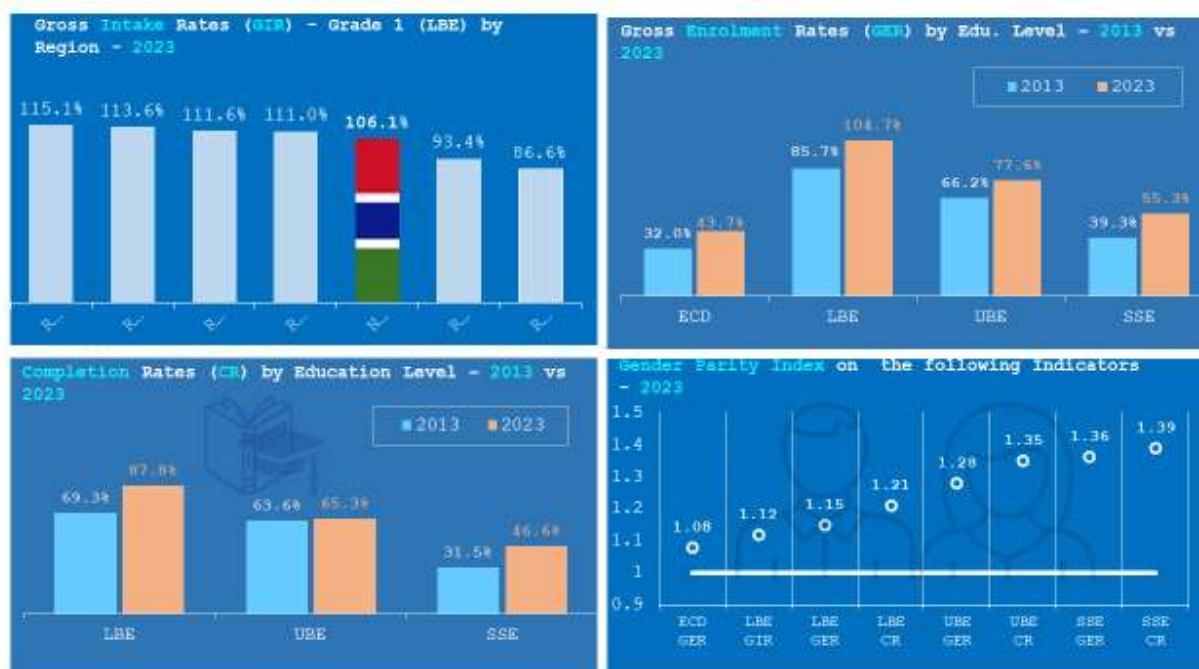
Ministry of Basic and Secondary Education – The Gambia

Second Chance Education is provided children who could not pass exams that could enable them transit to the next level of education. These people are given the second chance to transit to their next level of education through the provision of remedial classes. Currently, one thousand and fifteen people benefited from it.

Re-Entry Programme for Girls

The Re-entry Programme for Girls is a programme that enable drop out girls go back to school. Girls who dropped out as a result of pregnancy, early marriage or economic difficulties re-entered back to schools of their choice and sponsored to continue their education. From 2004 to date, 5768 girls have been re-entered back to school. The figures below shows the percentages in terms of enrolment in 2013 as oppose to 2023.

11TH CONSULTATIONS ON THE IMPLEMENTATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION



SOURCE: THE MINISTRY OF BASIC AND SECONDARY STATISTICAL YEAR BOOK 2023

Standards and Quality Assurance is a very important aspect of the basic and secondary education system. The Minimum Standards for basic and secondary education which emphasized among others on a conducive and safe learning environment was developed and is being used. A Cluster Monitoring System was set up and Cluster Monitors appointed to be responsible for every cluster. Their main responsibility is to monitor teaching and learning as well as other aspects of the minimum standards. Moreover, The Classroom Observation Tool was also developed to assist the cluster monitors and senior teachers observe teaching and learning effectively and efficiently.

Ministry of Basic and Secondary Education – The Gambia

The creation and operation of The Science and Technology Education Directorate was a Policy priority. Science, technology and mathematics education are popularized as well as a sector policy developed to enable the directorate map out a direction that will enable it achieve its policy objectives. Activities such as mathematics and science clinics for girls, spelling bees, creation of science clubs in schools and also popularization of science, mathematics and technology were conducted.

The new Curriculum Framework was developed and emerging issues were incorporated. Efficient and effective teaching and learning methods were adapted as well as new subjects especially TVET subjects were also incorporated. The Language Policy was developed and preparations are on the way to pilot the use of Wolof language in teaching and learning.

Child Protection

Sex and Gender Based Violence do occur in schools and communities. The Policy pronouncement of the Ministry is the “creation of a conducive learning environment for children”. This is under the purview of the Gender Unit in the Ministry. Initiatives employed include the development of the following;

1. The Sexual Harassment Policy Guidelines

2. The Alternative Discipline Handbook

3. The Gender Training Manual

4. The Gender Action Pack

**5. The Guidance and Counselling Training Manual for
Teacher Guidance Counsellors**

6. The Code of Conduct for teachers

Series of community sensitisations and trainings were conducted to create awareness on and the repercussions of sex and gender based violence. Moreover, The Gambia as a country enacted the following Acts to fight sex and gender based violence.

1. The Sexual Offences Act of 2013

2. The Domestic Violence Act of 2013

3. The Anti FGM/C Act of 2015

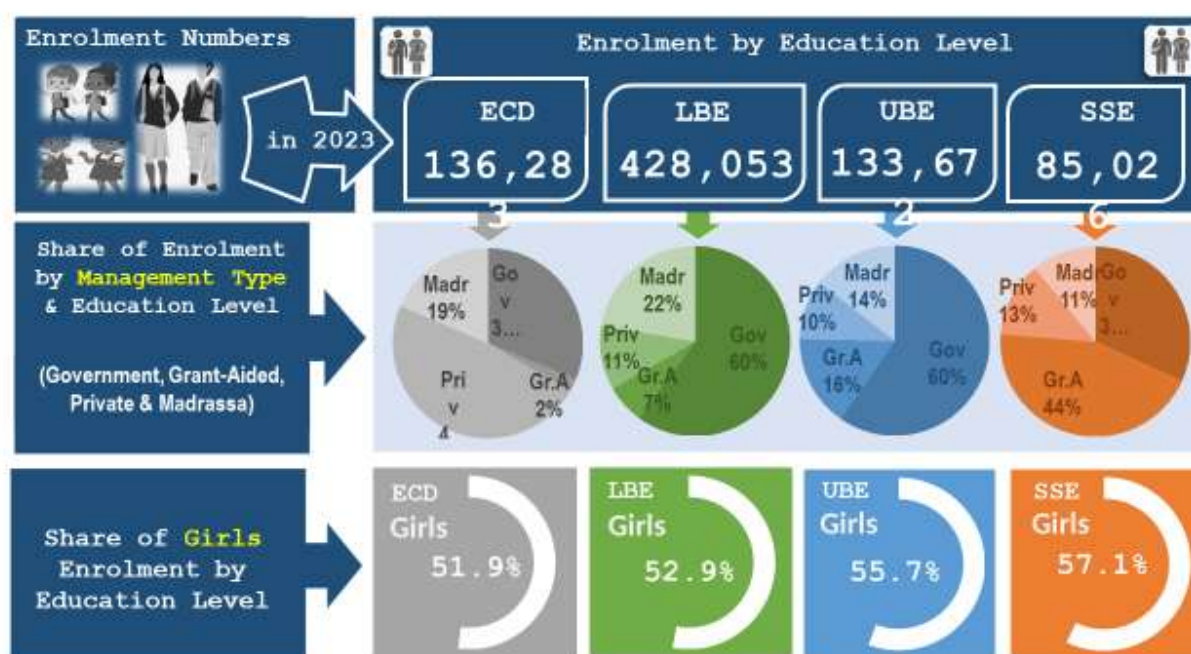
4. The Anti Child Marriage Act of 2015

5. The Disability Act 2021

6. The Special Educational Needs Policy

With all these documents as well as the building of separate toilet facilities for girls, building special needs friendly and

banning corporal punishment in schools are all geared towards ensuring safe and conducive learning environment as well as the protection of all children, the percentage of girls at all levels of education have increased. The figure below show the percentage of girls at all levels increasing to more than 50%.



SOURCE: THE MINISTRY OF BASIC AND SECONDARY STATISTICAL YEAR BOOK 2023

Preservice (PRESET) and In-service Training (INSET) of Teachers and Teacher Supply

The Comprehensive Framework for Pre-service and In-service Teacher Training was developed with reference to an extensive range of sources and analysis of strategic frameworks for and approaches to teacher education. Equity

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and equality and well as non-discrimination was the main guiding principle of PRESET and INSET. Development of the Framework was also informed by critical discussions with key actors and stakeholders from the MoBSE and from Gambia College and the University of The Gambia.

The Comprehensive Framework for Pre-service and In-service Teacher Training aims to provide a coherent, consistent, strategic and sustainable approach to transforming teacher education in The Gambia and improving the quality of the teaching profession at all levels. The key principles and critical considerations that have informed the design of the framework are as follows:

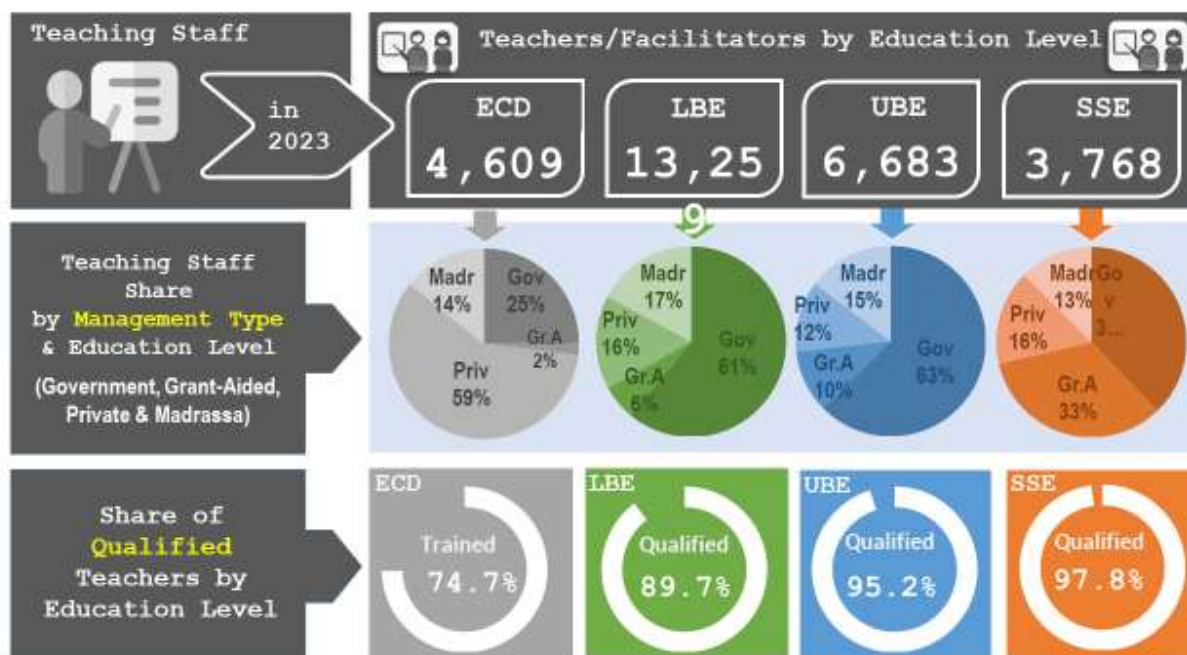
- 1. The need to establish a *continuum* in teacher professional development from PRESET to Induction to INSET in line with recognised international good practice.**
- 2. The need to design and connect all components of PRESET programs to the fulcrum of Teaching Practice in schools and on developing the competences needed to teach effectively the national school curriculum for The Gambia.**
- 3. The need to develop a suite of In-service Teacher Upgrading Training Modules in the core curriculum subjects in which Content Knowledge (CK) and Pedagogical Knowledge (PCK) are integrated.**

- 4. The need for additional modules for both PRESET and INSET in areas of national priority, including Inclusive Education and Special Education Needs, Early Childhood Development, national languages, Technology Enhanced Learning Teaching and Assessment (TELTA).**
- 5. The need for a *Teacher Professional Development Index of Competences* (TPDIC) with graded competency levels for all stages of a teacher's professional career including student teacher, Teacher, Senior teacher and Head Teacher. Such an Index of Competences is a fundamental and critical requirement as it provides a coherent approach to transforming all aspects of teacher education**

With the development of the framework teacher supply in terms of quality and quantity was positively affected. The

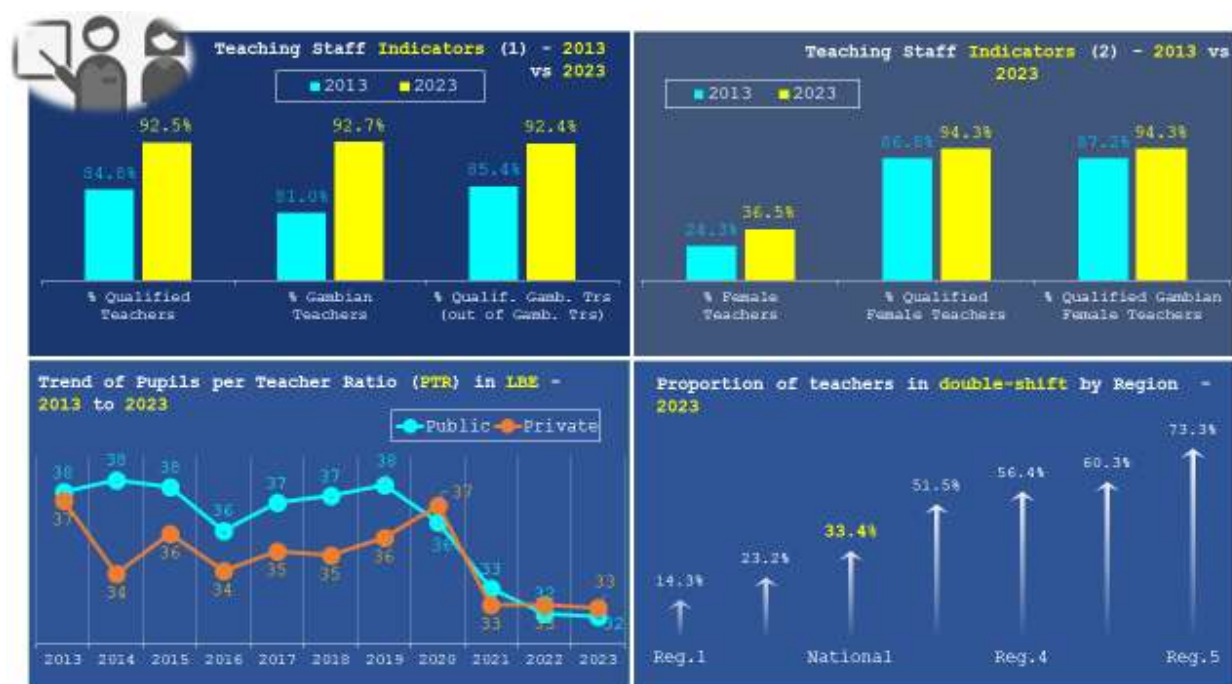
11TH CONSULTATIONS ON THE IMPLEMENTATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

tables below will better explain this argument.

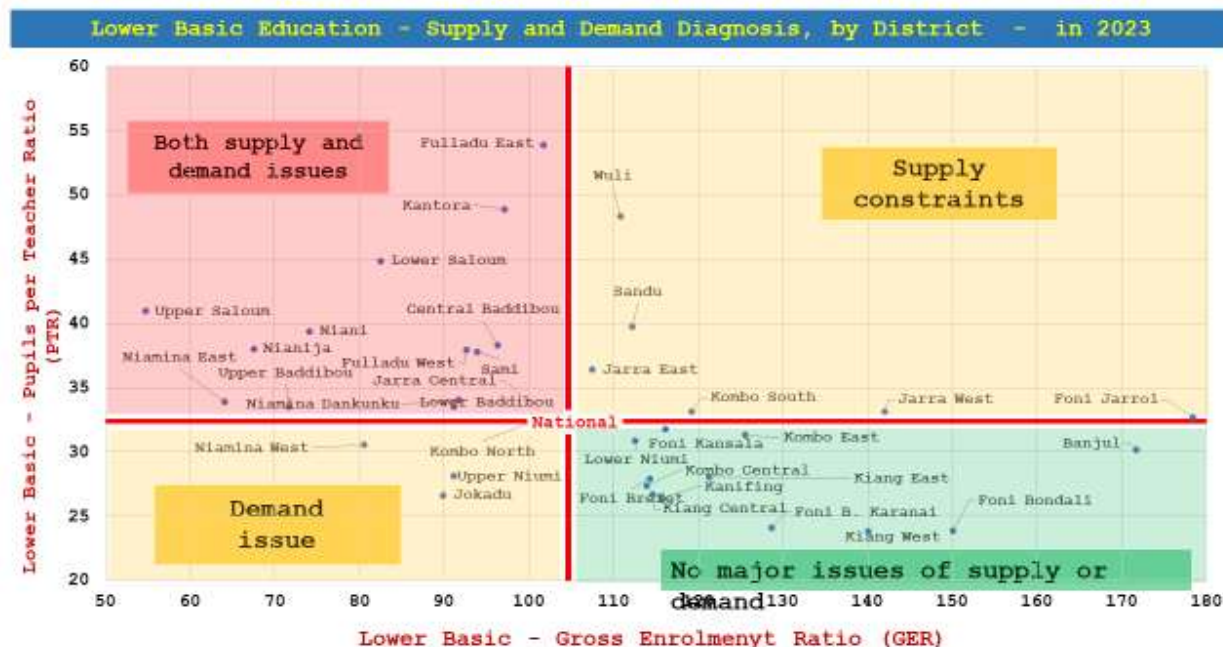


SOURCE: THE MINISTRY OF BASIC AND SECONDARY STATISTICAL YEAR BOOK 2023

11TH CONSULTATIONS ON THE IMPLEMENTATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION



SOURCE: THE MINISTRY OF BASIC AND SECONDARY STATISTICAL YEAR BOOK 2023



The analysis shows marked variations by district, reflecting a complex mix of supply and demand issues.

SOURCE: THE MINISTRY OF BASIC AND SECONDARY STATISTICAL YEAR BOOK 2023

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Early Childhood Development (ECD) and Special Needs Education

Further, the Early Childhood and Inclusive Education Directorate was set up in 2021 to give more emphasis on children under seven and also children with special needs and their need for education. It also speaks to the policy pronouncements of

1. Non discrimination

2. Provision of education for All

Itinerant teachers were trained and posted to all the regions to help in our all-inclusive Policy direction for children under seven as well as children persons with disabilities.

In providing ECD in The Gambia, ECD programming takes different forms. These include health care, social welfare, nutrition, protection, education, water and sanitation. Various stakeholders participate in the provision of ECD services. They include children and their families, communities, Civil Society Organizations for example, the Association for Early Childhood Educators, Non-Government Organizations – the main one being the Christian Children's Fund (CCF,) The Gambia, Funding agencies such as UNICEF, The World Bank, Action Aid, The Gambia and central government sectors namely the Ministry of Basic and Secondary Education(MOBSE), Ministry of Health (MOH),

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Ministry of Water Resources (MoWR), Ministry of Local Government and Lands (MOLGL) through the Department of Community Development (DCD), and National Nutrition Agency (NaNA).

Early Childhood Education was traditionally ensured by MOBSE through the support and co-ordination of private sector provisions. DCD also funded and supervised the provision of Formal Education Daycare centers in the rural areas and also played a crucial part in promoting community participation in ECD. As a result of the 2004 to 2015 and the 2016-2030 Education Policies following strategies are being implemented:

- **Provision of facilities and services for ECD/annexing of centers to Lower Basic Schools in poor rural Gambia**
- **Development of guidelines for the training of polyvalent teachers**
- **Review and improvement of ECD curriculum**
- **Designing resource mobilization strategies for the implementation of the ECD Policy Framework**
- **Co-ordination, support and facilitation of the provision of early years education through monitoring, assessment and supervision of ECD programme**
- **Development of guidelines for the establishment and management of centers**
- **Partnership building and strengthening**

- **Mobilization, sensitization and motivation of communities to participate in the provision of ECD**
- **Promotion of Parenting Education Programme**
- **Support and participation in the implementation of the national ECD Policy Framework**
- **Provision of meals to children in centers annexed to Lower Basic Schools**
- **Pre-service training of teachers on full and part time basis.**

Adult and Non Formal Education

The Formal education system alone has not been successful in meeting all the manpower-training needs of The Gambia; and indeed, will not ever be able to do so in the near future, especially in our endeavors to achieve all the development targets enshrined in the National Development Plan 2023 - 2026. Formal education has been successful in training professional and administrative cadre of the public and private sectors, for example: Teachers, Health personnel, extension workers, researchers and other important technical and skilled areas for social and economic development. However, formal education provides limited skills in small-scale entrepreneurship and elementary business practices, two of the major constraints on rural and national development.

Training provided through Non-Formal Education is important, because it can target specific development problems or groups that require relatively flexible responses and that can be modest in scale and implemented under less than ideal conditions. Characteristics of Non Formal Education in the Gambia are indispensable to our national development; for example, they are usually related to action and use, they tend to be short-term rather than long, they have a variety of sponsors, both public and private, and they tend to be responsive to local community requirements.

Non Formal Education has the potential for reaching those most likely to be excluded from the formal system; the poor, the isolated, the rural settlers, children of illiterate parents, the unemployed and the under-employed. Formal education and non-formal education have linkages in a number of ways with similar characteristics.

Moreover, there has always been advocacy for a participatory approach in both Non Formal Education and Formal Education. Cross-cutting issues like mainstreaming Non Formal Education in the Education Policy has been done. Notwithstanding, the potential of Non Formal Education to complement the shortcomings of the formal education system has not been adequately addressed. This Non Formal Education programme in the Gambia is designed to:

- ❖ **Influence increase in enrolment and retention by providing functional literacy and skills development to mothers' clubs and ECD school readiness programme for parents;**
- ❖ **Provide Non Formal Education for out-of-school youth for transition to formal schooling;**
- ❖ **Enhance the use of school teachers as facilitators and school premises for Non Formal Education programs;**
- ❖ **Provide access to education for the excluded;**
- ❖ **Provide opportunity for the Formal Education system to be exposed to more learner centred methodologies and other Non Formal Education participatory techniques;**
- ❖ **Provision of opportunities for Non Formal Education providers to be trained in some of the tertiary institutions e.g., Gambia College, GTTI,**
- ❖ **Provide opportunities for Non Formal Education graduates to transit into the Formal Education system**
- ❖ **Provide functional literacy for adults**

The Performance Management System

A Performance Management System was developed by the Performance Management Unit to measure performance of staff. Directors sign performance contracts with the Permanent Secretary while the Director sign with their staff. Furthermore, Directors are also expected to report back to the Permanent Secretary in a form of a bilateral. This is what

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is also done at the level of the Directorate. This enables every staff to be treated fairly. The Performance Management Unit work with all Directorates to develop their work plans.

Monitoring and Evaluation

A Monitoring and Evaluation Unit under the Directorate of Performance Management, Assessment, Monitoring and Evaluation does the monitoring and evaluation of the Ministry's performance as per our indicators in our Education Sector Strategic Plan. A monitoring framework was developed and is being implemented.

Challenges

One of the major challenges is in the issue of the Bill place in the National Assembly for repealing the 2015 FGM Act. The repealing of this law is going to have a significant negative impact on the girl child and that could have the education and well-being of the girl child moving forward. The FGM is a discriminatory harmful cultural practice against females that poses a serious threat to the school. This Act has not yet been repealed

Additionally, most of schools built before 2015 are not special needs friendly. As such, children with special educational

needs find these schools impossible to access budget constraint means such measures cannot still be met.

Moreover, another challenge that the Ministry is grappling with is getting and maintaining teachers especially in the rural areas. The inadequate presence of female teachers negatively affect the girls' education as female teachers are seen as role models for the young girls. Also, the presence of female teachers make parents to be at ease to send their daughters to school.

In the Ministry's quest to curb this challenge, the Ministry decided to give votes for teacher postings to every Regional Education Directorate to reduce the teacher shortage to the provinces.

Conclusion

In conclusion, combating discrimination against vulnerable needs every stakeholders contributions. The Ministry, just like our partners are concerned with discrimination in schools and communities and we are more than willing to continue the partnership in implementing the 1960 Convention and recommendations. The schools should serve as a breeding ground for peace and safety. The well-being of our students is our policy direction and the Ministry holds its firm belief that these challenges with the continues support from all our partners will be curbed. The discrimination against children,

girls, special needs children, vulnerable groups in the communities are a concern for the Ministry that is why we are working tirelessly towards safeguarding the children.